

“country” includes territory;

“customs duty” includes any corresponding duty in any part of the Convention area;

“officer” means a person commissioned by the Commissioners.

(2) The expression “customs Acts” in the Customs and Excise Act, 1952, shall include all the provisions of this Act, and for the purposes of that Act all those provisions shall be deemed to relate to an assigned matter.

12.—(1) This Act may be cited as the European Free Trade Association Act, 1960. Short title and extent.

(2) It is hereby declared that this Act extends to Northern Ireland.

CHAPTER 20

An Act to enable the Minister of Housing and Local Government to extend the period for which possession of requisitioned houses may be retained by local authorities under the Requisitioned Houses and Housing (Amendment) Act, 1955, and for purposes connected therewith. [22nd March, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, the Minister may by order direct that subsection (2) of section one of the Requisitioned Houses and Housing (Amendment) Act, 1955 (which authorises the retention until the thirty-first day of March, nineteen hundred and sixty of requisitioned houses of which the right to possession was vested in local authorities by that Act) shall have effect, in its application to any local authority, as if for the reference to the said thirty-first day of March there were substituted a reference to such date (not later than the end of March nineteen hundred and sixty-one) as may be specified in the order. Power to authorise retention of requisitioned houses after 31st March, 1960. 3 & 4 Eliz. 2. c. 24.

(2) An order under this section may be made so as to apply either to all requisitioned houses in the possession of the local authority under the said Act (hereafter in this Act referred to as the Act of 1955), or to all such houses subject to such exceptions (whether for particular houses or for houses of any particular class or description) as may be specified in the order, and may be varied by a subsequent order made thereunder.

(3) The power to make orders under this section shall be exercisable by statutory instrument; and it shall be the duty of every local authority who are authorised by virtue of such an order to retain possession of any houses after the thirty-first day of March, nineteen hundred and sixty, to give notice in writing to that effect to the owners of those houses, specifying the period for which they are so authorised to retain possession.

Rental
compensation
and Exchequer
contributions

2.—(1) In respect of any period after the thirty-first day of March, nineteen hundred and sixty, for which possession of a requisitioned house is retained by virtue of an order under section one of this Act, the amount of the rental compensation to be paid by the local authority in accordance with section two of the Act of 1955 shall be the amount payable under that section increased by fifty per cent.

(2) The Minister shall pay to every local authority in whose case an order is made under section one of this Act, in respect of any deficit incurred by that authority (as assessed by the Minister) in connection with all requisitioned houses of which they are for the time being in possession by virtue of the order, a contribution at the rate of twenty-five per cent. of the deficit.

(3) The power of the Minister to make contributions under section eleven of the Act of 1955 in respect of houses leased or purchased by local authorities for the accommodation of persons occupying requisitioned houses in their districts may be exercised in respect of houses leased or purchased for the accommodation of persons occupying requisitioned houses of which possession is retained after the thirty-first day of March, nineteen hundred and sixty by virtue of an order under section one of this Act:

Provided that in relation to a house approved by the Minister under the said section eleven by virtue of this subsection, subsections (2) and (4) of that section (which specify the rate of the annual contributions and the amount recoverable by the Minister in the case of a sale or surrender) shall have effect as if for the words "seventy-five per cent." there were substituted the words "twenty-five per cent."

(4) Subsection (2) of section ten of the Act of 1955 (which enables the Minister to make special grants to local authorities in respect of expenses falling to be borne by them in consequence of Part I of that Act) shall not apply to expenditure in respect of houses of which possession is retained after the said thirty-first day of March by virtue of an order under section one of this Act, or in respect of houses approved under section eleven of that Act by virtue of subsection (3) of this section.

Supplementary
provisions.

3.—(1) In relation to houses of which possession is retained by a local authority after the said thirty-first day of March by virtue

of an order under section one of this Act, Part I of the Act of 1955 shall have effect subject to the further modifications set out in the Schedule to this Act.

(2) There shall be defrayed out of moneys provided by Parliament—

- (a) any increase attributable to this Act in the sums payable out of moneys so provided under the Act of 1955 or any other enactment; and
- (b) any sums required by the Minister for making payments under subsection (2) of section two of this Act.

4.—(1) This Act may be cited as the Requisitioned Houses Act, 1960. Short title,
construction
and extent.

(2) This Act shall be construed as one with the Act of 1955.

(3) This Act does not extend to Scotland or Northern Ireland.

SCHEDULE

Section 3.

MODIFICATIONS OF PART I OF ACT OF 1955 IN RESPECT OF HOUSES RETAINED UNDER THIS ACT

In section two, in subsection (1), after the words “emergency powers” there shall be inserted the words “and shall so apply notwithstanding the expiration of the period for which possession of land could be retained by a Minister under Part VI of the Requisitioned Land and War Works Act, 1945”.

In section three, in subsection (1), for the words “four weeks” there shall be substituted the words “fourteen days”; subsections (2), (4), (6) and (7) shall not apply; for subsection (3) there shall be substituted the following:— 8 & 9 Geo. 6.
c. 43.

“(3) Where such a licence is terminated by the death of the licensee, the right of the local authority to retain possession of the dwelling shall not be terminated under this section if within the said period a fresh licence for the occupation of the dwelling is granted by the authority to a statutory successor of his.”;

and in subsection (5), for the words from “(except” to the end of the subsection there shall be substituted the words “except in pursuance of such a licence as is mentioned in subsection (3) of this section”.

Section four shall not apply.

Section five shall not apply except for the purposes of any application made under that section before the thirty-first day of March, nineteen hundred and sixty.

In section six, in subsection (1), the word “either”, in both places where it occurs, the words from “or to dispose” to “this Act” and the words from “or, at the option” to the end of the subsection shall be omitted; and subsection (2) shall not apply.

Section seven shall not apply.

